

26PSCV00905 26PSCV00905

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Case Number: 26PSCV00905 Hearing Date: September 16, 2026 Dept: H

Gu v. Jia, et al., Case No. 26PSCV00905

ORDER ON MOTION TO QUASH SUMMONS

For

the reasons stated below, the Court is inclined to set an evidentiary hearing in connection with Defendants' Motion to Quash Summons. At the time of the hearing, the Court will hear further from the parties as to the witnesses to be called at the evidentiary hearing and the timing of the evidentiary hearing.

Background

Plaintiff

Rong Gu ("Plaintiff") alleges as follows:

On September 9, 2024, Plaintiff began working as a live-in domestic worker at 2137 Derringer Lane, Diamond Bar, CA 91765 ("Residence"). Plaintiff's duties included preparing meals for three adults and two children and cleaning various areas of the home during the hours of 10 a.m. to 7 p.m. Plaintiff, however, worked well past the agreed upon hours and was "on call" throughout the night. Plaintiff was also given job duties that were not agreed upon when she was hired, including trash duties. Plaintiff suffered injuries due to the new job duties and claims she was unfairly compensated during her employment. Plaintiff also claims she was not provided with adequate rest and days off and that her employers' actions were hostile and intimidating. Plaintiff left employment in August 2025.

On March

11, 2026, Plaintiff filed a Complaint, alleging causes of action against Sophia Jia (aka Lily Chao, Lily Zhao, Tiffany Chen, Yuting Chen, Yang Rong) ("Rong"), Yongzheng Jia (aka Abner Jia) ("Jia") [FN1], Chung-Liang Chen (aka Elton Chen) (collectively, "Defendants"), and Does 1-50, inclusive, for: (1) Failure to Pay Wages, (2) Failure to Pay Overtime, (3) Failure to Pay Minimum Wage, (4) Failure to Provide Meal and Rest Breaks, (5) Failure to Provide Itemized Wage Statements, (6) Failure to Reimburse Business Expenses, (7) Fraud, (8) Negligent Misrepresentation, (9) Hostile Work Environment – Harassment in Violation of FEHA, (10) Failure to Prevent Discrimination and Harassment in Violation of FEHA, (11) Failure to Engage in Interactive Process in Violation of FEHA, (12) Failure to Provide Reasonable Accommodations in Violation of FEHA, (13) Intentional Infliction of Emotional Distress, (14) Breach of Oral Contract, (15) Common Count – Goods and Services Rendered, (16) Constructive Discharge, and (17) Invasion of Privacy.

A Case

Management Conference is set for September 16, 2026.

Legal

Standard

"A defendant, on or before the last day of his or her time to plead . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., §418.10, subd. (a)(1).) By filing such motion, "a defendant makes a special appearance for the narrow purpose of contesting personal jurisdiction where the summons is defective." (Stancil v. Sup. Ct. (2021) 11 Cal.5th 381, 393.)

"California is a jurisdiction which in general requires strict statutory compliance with requirements for service of original process." (In re Abrams (1980) 108 Cal.App.3d 685, 693-694.) "Until statutory requirements are satisfied, the Court lacks jurisdiction over a defendant." (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 809.)

“In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court’s personal jurisdiction over a defendant.” (Floveyor International, Ltd. v. Sup. Ct. (1997) 59 Cal.App.4th 789, 793; see also Calvert v. Al Binali (2018) 29 Cal.App.5th 954, 961 [“To establish personal jurisdiction, it is essential to comply with the statutory procedures for service of process.”].) “When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160, internal quotations omitted.)

California Rules of Court, rule 3.110, subdivision (b) provides that a summons and complaint must be served on each defendant and a proof of service on each defendant must be filed with the court within 60 days after the complaint is filed. Proof of such service must be made by affidavit of the person making the service “showing the time, place, and manner of service” and including facts showing service was made in accordance with California law. (Code Civ. Proc., §§417.10, subd. (a), 417.30.) Proof of personal service must be made on a form adopted by the Judicial Council. (Id., § 417.10, subd. (f).)

“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery. The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective.” (Code Civ. Proc., § 415.10.)

If personal service is not possible with reasonable diligence, “a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of

business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., §415.20, subd. (b).)

Request
for Judicial Notice

Defendants’
Request

Defendants
request Judicial Notice of the Proofs of Service filed as to Defendants in this matter and a portion of the Complaint filed by Plaintiff. (RJN pp. 1-2; Cheng Decl., Exs. A-B.) The documents were previously filed and can be found in the case file, which are properly subject to judicial notice pursuant to Evidence Code sections 452(c)-(d), (h). “Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451: (c) Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States; (d) Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States; and (h) Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452(c)-(d), (h).) As such, Defendants’ request for judicial notice is granted as to the existence of the documents but not as to the truth of the matters asserted within.

The
request also seeks all records maintained by the Superior Court concerning the matter entitled Rong Gu v. Sophia Jia, et al., Case No. 26PSCV00905. That request is denied both as unnecessary and because Defendants have not attached the relevant records as an exhibit.

Plaintiff’s
Request

Plaintiff

seeks Judicial Notice of the following documents: (1) Complaint filed on December 24, 2020, in the action styled Ariel Abittan v. Lily Chao, et al., United States District Court, Northern District of California, San Jose Division, Case No. 5:20-cv-09340-NC; (2) Motion to Dismiss or Quash Service of Summons filed May 28, 2021 in the action styled Ariel Abittan v. Lily Chao, et al., United States District Court, Northern District of California, San Jose Division, Case No. 5:20-cv-09340-NC; (3) Plaintiff's Motion For An Order Allowing Defendants Lily Chao And Damien Ding To Be Served (1) Through Counsel, (2) Through Temujin Labs Inc. (Delaware's) Registered Agent, (3) By Text, Or (4) By Publication in the action styled Ariel Abittan v. Lily Chao, et al., United States District Court, Northern District of California, San Jose Division, Case No. 5:20-cv 09340-NC; (4) Cross-Complaint filed on March 30, 2021, in the matter styled Temujin Labs, Inc. v. Franklin Fu, Santa Clara Superior Court Case No. 21CV375422; (5) Judgment filed on February 5, 2024, in the matter styled Temujin Labs, Inc. v. Franklin Fu, Santa Clara Superior Court Case No. 21CV375422; (6) Judgment filed on June 30, 2025, in the matter styled Temujin Labs, Inc. v. Franklin Fu, Santa Clara Superior Court Case No. 21CV375422; (7) Cross-Complaint filed on November 17, 2021, in the matter styled Temujin Labs, Inc. v. Ariel Abittan, et al., Santa Clara Superior Court Case No. 20CV372622; (8) Judgment filed on June 30, 2025, in the matter styled Temujin Labs, Inc. v. Ariel Abittan, et al., Santa Clara Superior Court Case No. 20CV372622; (9) Judgment filed on July 29, 2025, in the matter styled Temujin Labs, Inc. v. Ariel Abittan, et al., Santa Clara Superior Court Case No. 20CV372622. (P's RJN, Exs. 1-9.)

The

documents were previously filed and can be found in the case file, which are properly subject to judicial notice pursuant to Evidence Code sections 452(c)-(d), (h). "Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451: (c) Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States; (d) Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States; and (h) Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452(c)-(d), (h).) As such, Plaintiff's request

for judicial notice is granted as to the existence of the documents but not as to the truth of the matters asserted within.

Evidentiary

Objections

Defendants'

Evidentiary Objection No. 1 is overruled.

Defendants'

Evidentiary Objections Nos. 2-4 are sustained in part and overruled in part.

The Court will not consider the statements allegedly made by the security personnel or unidentified occupants for the truth of the matters asserted but only for the fact that statements were made and to provide context for Ms. Enriquez's actions.

Defendants'

Evidentiary Objection No. 5 is overruled.

Discussion

Pursuant

to Code of Civil Procedure section 418.10(a)(1), Defendants move the Court to quash service of the Summons and Complaint by Plaintiff on the grounds that absent service by a statutorily authorized means, the Court has not acquired jurisdiction over Defendants.

As a

preliminary issue, "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion" to quash service of summons. (Code Civ. Proc., § 418.10, subd. (a)(1).) "The service and filing of the notice shall extend the defendant's time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion." (Id., subd. (b).) The Proofs of Service filed on April 8, 2026, indicate that the Defendants were personally served on April 5, 2026; thus, Defendants were required to file this motion by May 5, 2026. Defendants, however, state that Plaintiff agreed to an extension on May 1, 2026 to June 1, 2026. (Cheng Decl., ¶ 9.) Plaintiff does not dispute this assertion. The motion was filed on June 1, 2026. Accordingly, the motion is timely.

When a

defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) The plaintiff must establish the facts of jurisdiction by a preponderance of the evidence. (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.)

Defendants

assert that: they were never personally served with the Summons or Complaint; Defendants were not present at 3 Harbor Light, Newport Coast, CA 92657 (“Harbor Property”); Tiantian Zhang, the Harbor Property’s resident, was not authorized to accept service on Defendants’ behalf; the papers were merely left at or near the Harbor Property’s door; the Harbor Property is not Defendants’ residence, home, usual mailing address, or place of business; substitute service was not properly effectuated pursuant to Code of Civil Procedure section 415.20; and substituted service would be impermissible here because Plaintiff has failed to show reasonable diligence. (Mot., at pp. 4-8.)

The

Proofs of Service filed by Plaintiff on April 8, 2026, indicate that Defendants were personally served on April 5, 2026, at 4:15 p.m., at the Harbor Property. Defendants state, however, that the Harbor Property is not their residence, domicile, dwelling, usual mailing address, or place of business. (Chen Decl., ¶¶ 5-6; Jia Decl., ¶¶ 5-6; Rong Decl., ¶¶ 5-6.) Defendants also state that they were not present at the Harbor Property at the date and time listed: Chen and Rong were dining together in Rowland Heights and Jia merely states he was not there. (Chen Decl., ¶¶ 8-11; Jia Decl., ¶¶ 8-10; Rong Decl., ¶¶ 8-11.) Defendants further state that Tiantian Zhang is not their agent for process service, and he has never been authorized to receive legal documents, summonses, complaints, or lawsuits on their behalf. (Chen Decl., ¶¶ 14-15; Jia Decl., ¶¶ 12-13; Rong Decl., ¶¶ 14-15.)

Tiantian

Zhang also states that: (1) he lives at the Harbor Property; (2) on April 5, 2026, at around 4:30 p.m., he was told by security that an individual had entered the private community in which the Harbor Property resides to serve legal papers; (3) Mr. Zhang was not home and thus was not personally served

with papers; (4) he did not authorize anyone in his property to accept service on his behalf; (5) the documents were left at or near the front door of the Harbor Property; (6) Plaintiff had previously worked for Mr. Zhang as a domestic worker; and (7) Defendants do not live at the Harbor Property, have never used said property as their residence, domicile, mailing address, and/or place of business, and Mr. Zhang is not an agent for process service for Defendants. (Zhang Decl., ¶¶ 4-20.)

In opposition, Plaintiff states that she is not arguing that substitute service was effectuated. (Opp., at p. 4.) Rather, Plaintiff argues that Defendants were personally served at the Harbor Property, where they were present at the time of service, and because their evasive conduct prevented the papers from being handed to them directly, the complaint and summons were left at the door of the property. (Id.) Plaintiff further argues that Defendant Rong is “a well-documented and adjudged con artist, liar, fraud and thief with multiple judgments totaling over \$275,000,000.00 against her and the companies and the individuals she is associated with.” (Id.)

Plaintiff puts forth the declaration of Melissa Enriquez, who is listed as the process server on the Proofs of Service. Ms. Enriquez states the following:

On April 5, 2026, she arrived at the Harbor Property for the purpose of serving the Summons and Complaint on Defendants. (Enriquez Decl., ¶ 2.) Ms. Enriquez confirms that the Harbor Property is located within a gated community, and that upon arrival, security personnel advised her that Defendants were currently at the Harbor Property and called the occupants. (Id., ¶ 3.) The occupants answered and security personnel told them that Ms. Enriquez was delivering packages without disclosing their legal nature; security personnel let Ms. Enriquez through. (Id.) When she arrived at the property, she noticed several vehicles, including a red Tesla. (Id., ¶ 4.) As she walked up to the front door, she saw movement through multiple glass windows and noted the Defendants peering at her; once they noticed Ms. Enriquez, they ran toward the right side of the property. (Id.) Although Ms. Enriquez continued knocking and ringing the doorbell, the occupants did not answer. (Id., ¶ 5.) Ms. Enriquez returned to the security guard, who informed her that the occupants had been calling the

guard and questioning Ms. Enriquez's presence. (Id., ¶ 6.) Ms. Enriquez remained at the Harbor Property for two hours – she saw Defendant Rong, who was wearing a purple hoodie and tan-colored pants, who approached the window multiple times, but did not make contact. (Id., ¶ 9.) Another woman approached the front door at one point but repeatedly refused to take the documents and instructed her to leave. (Id., ¶ 10.) Eventually, Ms. Enriquez placed the service packets on the front entrance in the Defendants' presence while informing them of the nature of the documents. (Id., ¶ 11.)

“The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements.” (Floveyor Internat., Ltd. v. Superior Ct. (1997) 59 Cal.App.4th 789, 795.) The proofs of service here include the date, time, and location of the alleged service, and Plaintiff puts forth Ms. Enriquez's declaration countering Defendants' claims and asserted that service was properly effectuated on Defendants. But, while Ms. Enriquez is exempt from registration as a process server under Business and Professions Code section 22350, subdivision (b)(4), as an investigator and employee of Origin Investigations, Inc., her status as an investigator does not grant her the rebuttable presumption under Evidence Code section 647. (Enriquez Decl., ¶ 1.) Thus, the proofs of service do not create a rebuttable presumption that the service was proper.

Defendants, however, cannot defeat personal service by refusing to accept the papers. Service is complete when the papers are left in the defendant's presence under circumstances that a reasonable person would recognize as service being attempted. (See *Crescendo Corp. v. Sheltd, Inc.* (1968) 267 Cal.App.2d 209, 213 [“The individual upon whom the process server attempts to make personal service by manual delivery may not be heard to claim that service was improper because he refused to accept service.”].) Ms. Enriquez states that she saw Defendants in the Harbor Property at the time of service and describes Ms. Rong's clothing; she further states that she attempted to serve Defendants with the papers, but they refused to approach and open the front door. (Enriquez Decl., ¶ 4-10.) After 2 hours, Ms. Enriquez left the documents at the front door of the Harbor Property while informing the occupants about the contents of the documents. (Id., ¶ 11.) Ms. Enriquez concludes with the following statement:

“Based

upon my direct observations, the statements made by security personnel, the telephone confirmation by the occupants to security, the repeated visual observations of Defendants inside the residence, the Defendants’ continued monitoring of my presence through windows and surveillance systems, and their repeated communications with security personnel regarding Enriquez’s identity and purpose, it was evident that Sophia Jia, Chen Chung-Liang [sic], and Youngzheng [sic] Jia were aware of my presence and purpose but intentionally refused to answer the door or directly accept service.”

(Id.,

¶

12.)

Plaintiff’s

evidence creates a material factual conflict as to Defendants’ presence at the Harbor Property.

Defendants

fail to provide sufficient evidence establishing that they were not at the Harbor Property on April 5, 2026. Although Defendants and Mr. Zhang declare that Defendants are not residents of the Harbor Property, neither puts forth evidence, such as property ownership documents, to support these assertions. In addition, while Defendants state that they were not at the Harbor Property at the time of service, they fail to provide any supporting evidence, such as a restaurant receipt to substantiate their claims.

The Court

also has lingering questions regarding Plaintiff’s evidence such that the Court is inclined to set an evidentiary hearing. For instance, the Court needs further information about how Ms. Enriquez was able to identify all three Defendants; while she includes a physical description of Defendant Rong at the time of service, she does not provide a description of the other defendants.

Accordingly,

the Court intends to set an evidentiary hearing on the motion to quash. The Court will hear from the parties as the timing of the hearing and the witnesses to be called, but the Court envisions hearing testimony from Melissa Enriquez, Yongzheng Jia, Yang Rong, Tiantian Zhang, and Chung-Liang Chen.

[FN] The Court notes that Defendants

Sophia Jia and Yongzheng Jia share the same last name; in their moving papers, however, Ms. Jia is named as Yang Rong. The Court, thus, refers to Ms. Jia as “Rong” throughout the ruling for clarity.